An AI made the transcript. Now the Supreme Court of Texas weighs it

A Montgomery County trial court struck a deposition transcript no certified reporter prepared. The court heard it on October 6th. Its orders through October 9th carry no ruling. Drawn to illustrate.





It began as a suit in Montgomery County

A wrongful termination suit. The deposition was recorded on video and its transcript made with an AI platform. Courthouse News reports the company did not object to the software at the deposition. Drawn to illustrate.

Two records of one deposition

Courthouse News reports the employee’s lawyer argued the video recording is certified, so the transcript does not have to be. The employer’s lawyer said a third party AI platform raises security and confidentiality questions.



The trial court struck the transcript

Courthouse News reports the Montgomery County trial court struck it in April 2025 because no certified shorthand reporter prepared it. The company had moved to strike it weeks after the deposition. The Ninth District denied relief. Drawn to illustrate.



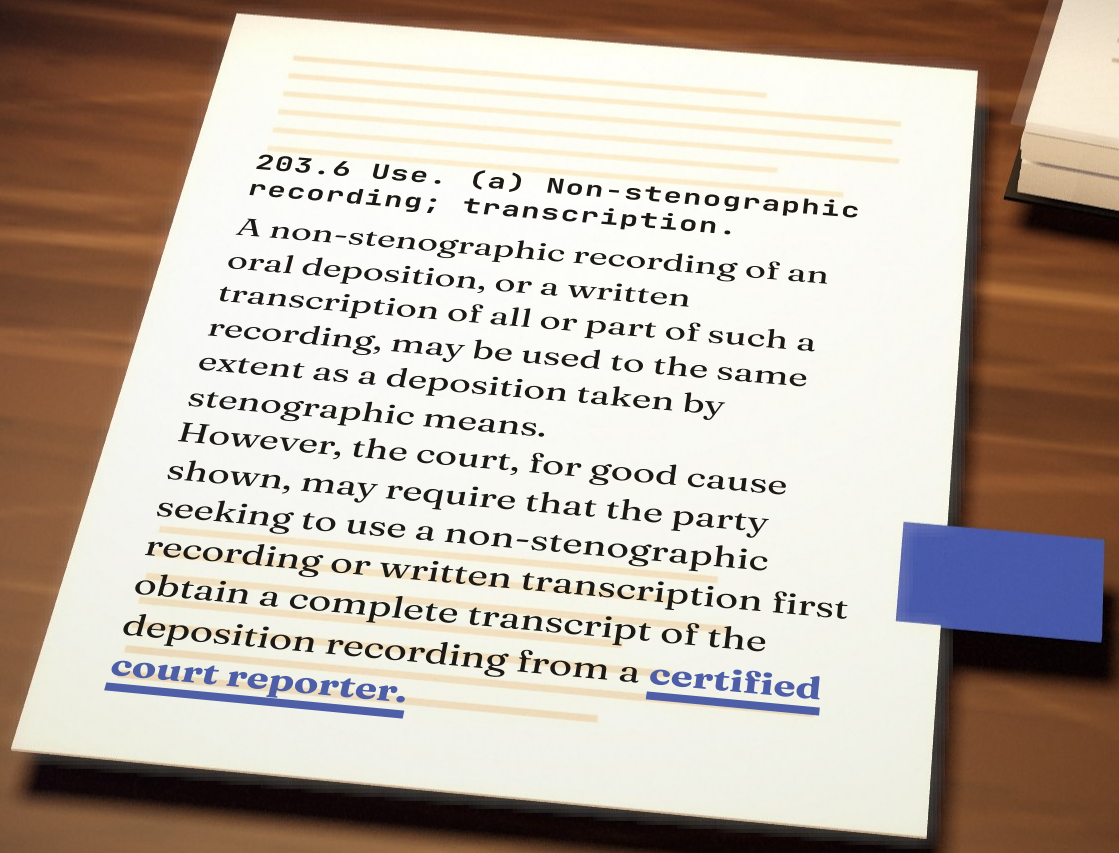
18 months, one step each

Courthouse News reports it was struck in April 2025. The petition was filed May 29th, 2025, and the court heard it 495 days later, on October 6th.



The rule already has a check

Rule 203.6(a) lets a written transcription of a recording be used like a stenographic deposition. A court may still require a certified reporter's transcript first, for good cause shown.



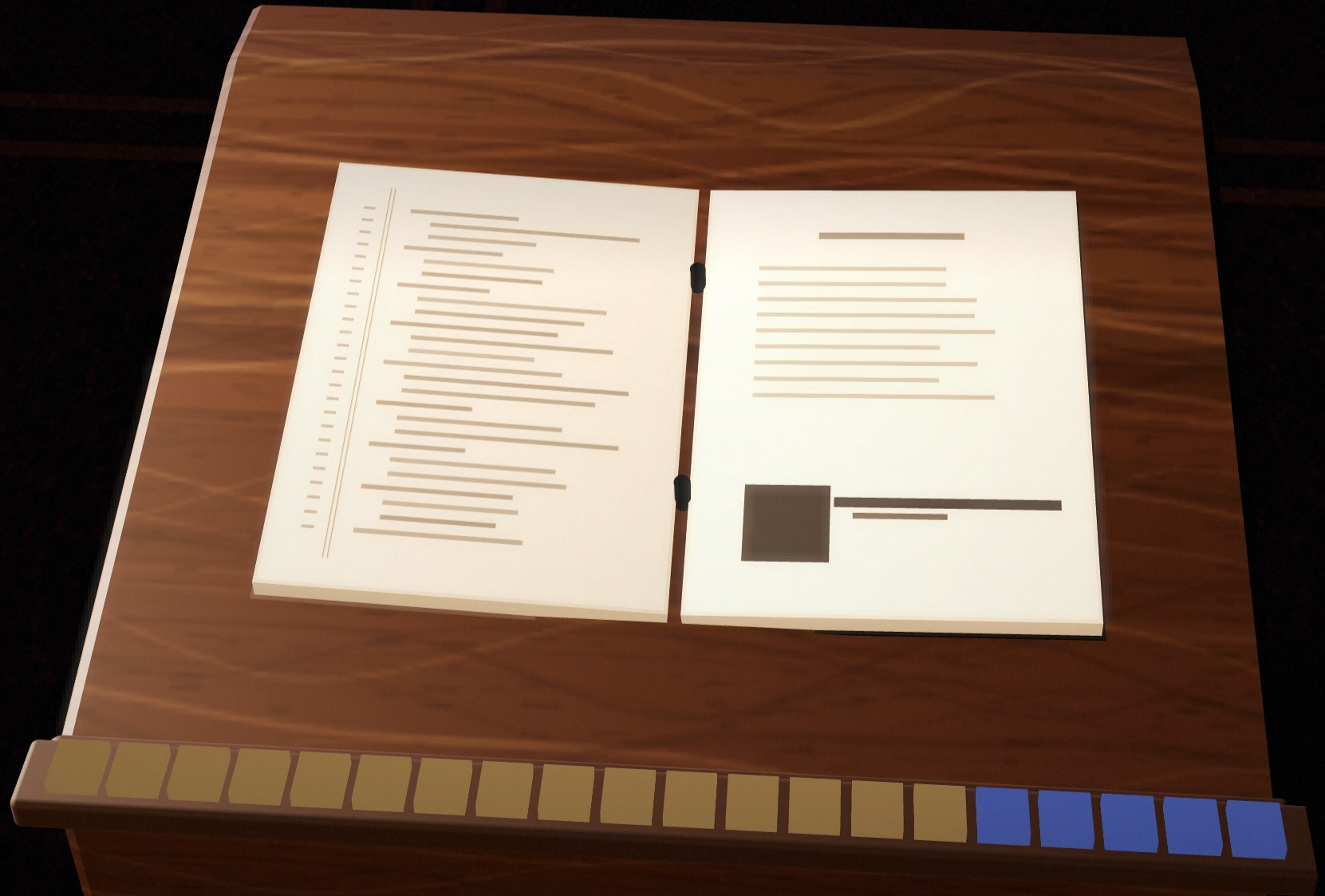
"Why are we here?"

Eight of the nine justices heard the argument on October 6th, Courthouse News reports. The Chief Justice observed that paying a certified reporter or letting the depositions go ahead this way would have been cheaper. Then he asked it. Drawn to illustrate.



Who stands behind the page?

Justice Bland asked where the court would find the assurance of a human being standing behind the transcribed product. Five of the employer’s twenty minutes went to the Texas Deposition Reporters Association. Drawn to illustrate.



Argued. Not decided

Justice Young named escape hatches, the recording itself and a judge's power to order a certified reporter. Courthouse News read the bench as inclined to allow it. The court's orders through October 9th carry no ruling in the case. Drawn to illustrate.

